



Appeal Decision

Site visit made on 01 September 2026

by Nicola Davies BA DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6010987

Loudon Way, Repton Park South, Godinton Park, Greet Chart, Ashford, Kent TN23 3DU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Ms Ashleigh Boyce of Amp Clean Energy against the decision of Ashford Borough Council.
 - The application Ref is PA/2025/2065.
 - The development proposed is the construction and operation of a micro energy storage project.
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Decision

1. The appeal is dismissed.

Procedural Matters

2. A revised version of the National Planning Policy Framework (the Framework) has been published since the planning application was determined by the Council. I have had regard to the revised Framework in reaching my decision.
3. I have taken the address of the site and the description of proposed development from the planning application form although I note these are expressed differently on other documents.

Main Issue

4. The main issue raised by this appeal is the effect of the proposed development on the character and appearance of the area.

Reasons

5. The area is characterised by landscape buffers between highways and built development along this part of the A28 and adjoining highways. I acknowledge that the surrounding area is urban in character and the proposal would not involve an isolated landscape feature, designated landscape, public open space, parkland or protected green infrastructure asset and is situated at a busy road junction. Notwithstanding this, these open undeveloped landscape areas provide an attractive area of open green space that contribute to the pleasing appearance of the area. These open grass verges are a visually distinctive characteristic of the locality.
6. This open space forms part of these landscape features and positively contributes to the pleasing visual appearance of the area. I do not agree with the appellant that the locality has a functional or engineered appearance. This open area hosts a limited amount of utilitarian street furniture that is located mainly around the edge of

the grassed area adjacent to the highway. The site is a visually prominent site within the public realm. The open and verdant appearance of the site significantly contributes to the public realm. The presence of nearby utility infrastructure does not alter the established landscape character of the appeal site itself.

7. Introducing a micro energy substation with its acoustic fencing within this green open space would be out of character within this open area. It would diminish the visual attractiveness of the open space by creating built development of utilitarian appearance within it. As such, it would diminish the open landscape characteristics of the locality and consequently the proposal would be visually harmful for this reason. Given its location close to the highway the visual harm arising from the proposed development would be extremely prominent and highly visible in public views.
8. Landscape planting around the proposal would reduce the visual impact of the proposed development and could be secured by an appropriately worded planning condition. However, given the size and height of the installation this would create a conspicuous rectangle area of vegetation within the open area. This would appear as an inconsistent out of keeping feature within the open area. Therefore, I do not consider such a condition would ameliorate the objections sufficiently to allow permission to be granted.
9. The appellant contends that the site is located in close proximity to the existing electricity substation and, as such, the proposed battery installation is not a standalone industrial development. However, the Council comments that the nearest electricity substation is situated on the opposite side of Loudon Way and to the rear of neighbouring residential properties and is screened from public view by a timber fence and is not readily visible from public vantage points. The substation does not form a prominent feature within the immediate environs of the area of the proposed development. As such, it would not form part of the context of the appeal site, which can and should be considered on its own merits.
10. I acknowledge that the proposal would bring about environmental renewable energy benefits. Nonetheless, such benefit must be considered against the visual harm arising from the proposed development. Such benefits would not outweigh the harm arising from the proposed development or justify the development. This offers little weight in favour of the proposal.
11. For these reasons, I conclude that the proposed development would be harmful to the character and appearance of the area. The proposal would, therefore, conflict with Policies SP1, SP6 and ENV3a of the Ashford Local Plan and the provisions of the revised Framework. These policies seek, amongst other matters, development to respect and enhance local character, distinctiveness and sense of place and to achieve a high standard of design that responds positively to its context. Whilst these policies and other development plan policies may support economic and environmental objectives for renewable and low-carbon energy development, the visual impact of the proposal is also required to be assessed against these policies.

Conclusion

12. Having regard to the above findings, the appeal should be dismissed.

Nicola Davies

INSPECTOR